E-ISSN: 3139-0668
Volume: I, Issue: II

https://kalingauniversity.ac.in/International-Journal-of-Research-and-Studies

INTERNATIONAL JOURNAL OF RESEARCH AND STUDIES

Month/Year : April – June, 2026 | DOI: https://doi.org/10.5281/zenodo.22332619

RECEIVED 21-04-2026

ACCEPTED 14-05-2026

PUBLISHED 30-06-2026

The Pedagogy of Statelessness: Education Exclusion of Children of Undocumented Migrants and the Right to Dignity Under Article 21

Asna Jabi, BBALLB (5th Year) | Email : asnajabi20@gmail.com
Masood Ahmed - BBALLB (5th Year)
Kalinga University, Raipur (C.G.)

ABSTRACT:

States whose legal status as citizens has not been recognised or affirmed by a government or international entity, and therefore cannot give authority or legitimacy to be governed by that state. The purpose of this paper is to look at how Statelessness creates legal or governmental ghosting in violation of human rights and Article 21 of the Constitution. The article will explore the impact of Immigration Policy on the Education of Stateless children worldwide by addressing the legal barriers that have led to the exclusion of undocumented and Stateless children from the Right to Education. The inquiry additionally investigates how such these barriers intersect with or are fundamentally in conflict with the Constitution's legal provisions (Articles 21 & 21A), the laws governing the RTE Act 2009, and International Treaty obligations (1954 Refugee Convention, Convention on the Rights of Children; International Covenant on Social, Economic and Cultural Rights - ICESCR; Universal Declaration of the Rights of Man (1948); Convention on the Elimination of All Forms of Discrimination against Women; and Convention on the Rights of Persons with Disabilities). Finally, the Research paper will demonstrate that the existing mechanisms for verifying citizenship in India, particularly Aadhaar, create an educational apartheid, which denies access to education for undocumented and Stateless upholding of human dignity the fundamental protection of human dignity found in the right to life. Finally, the Study will propose a three-pronged reformative framework utilizing the 4A elements of human rights: (i) Immediate Administrative Flexibility to Ensure Availability and Accessibility to Education; (ii) The Development of Structural Integration Over the Medium Term through Acceptable Strategies both Regionally and Nationally for the Integration of Stateless Persons into the Education System through Bridge Schools and NIOS Certification; and (iii) Long-term Legislative Structures, Including Development of a Comprehensive Refugee Law, to Codify the Right to Education for Stateless Persons.

Keywords: *Stateless children; Right to Education; Article 21; RTE Act 2009; 1954 Convention; Undocumented migrants; Dignity; Human Rights; ICESCR; CEDAW; CRPD;*

1. Introduction

Hannah Arendt's insightful remark about nationality being the **"right to have rights"** does not miss the mark when it resonates contemporarily with the experiences of stateless children in India today. These children suffer from a the inaccessibility of the **"gateway"** of citizenship, as they find themselves in a legal limbo that deprives them of their constitutionally enshrined fundamental right to education prescribed by Article 21A. Furthermore, the extent to which these young persons have been rendered documentation-less as a result of the irregular migration lawful position of their parents represent a form of violence against them and create what this paper refers to as Pedagogy of Statelessness, which consists of both epistemic and structural violence, as it denies them the means by which they can develop as persons and achieve their potentials as defined in Article 29 of the UN Convention on the Rights of the Child.

The Indian constitution itself marks an important contradiction when it comes to education. The Right to Life and Personal Liberty mentioned in Article 21 is interpreted as a right to educate oneself with dignity. Further, under Article 21A, the right to have education that is free of cost and compulsory for children aged between 6 to 14 years. The examples of documented and Stateless children highlight how far off the outcome of these rights is from their interpretation in the constitution. Furthermore, despite Article 21A allowing for free and compulsory education for children, the recent RTE Act of 2009 which facilitates this process is itself restricted to non-citizens owing to its reliance on Aadhaar-linked verifications.

The recent case in the Supreme Court, Rohingya Human Rights Initiative v. Government of NCT of Delhi marks an important milestone where of the doctrine of equality with respect to access to education has been confirmed. The Supreme Court's decision to send an aggrieved child seeking relief to the Delhi High Court signifies an ad hoc response to the need for protecting statutes relating to education.

In this paper, it is argued that this continued marginalisation due to Judicial incrementalism will not resolve the structural inequality caused by a citizen-driven verification process.

This paper is organized around four central aims for this research; (i) to analyse how articles 21 & 21A intersect legally with regard to stateless children, (ii) to document the violation of human dignity caused by the "documentation barrier", (iii) to investigate how the issues of gender, disability and caste intersect in relation to statelessness, and (iv) to develop an all-encompassing, reformative framework that is based within international human rights law (1954 Convention, art. 22; CRC General Comments No. 6 and No. 22; ICESCR General Comment No. 22) and comparisons with best practices in many different countries constitutions.

2. Methodology

This research utilises the method of doctrinal legal research with two other methods of conducting analysis: a comparison of constitutional laws in several countries and analysing policies that intersect with multiple areas related to the dignity interests of minors and their progenitors displaced across borders or asylum seekers. The primary sources include the Constitution of India (specifically articles 5, 14, 21, and 21A), the 2009 Right to Education Act, and its rules and regulations, the Citizenship Act of 1955 (as amended), and the proposed Asylum Bill (2021). The international instruments that have been reviewed for this research include the 1954 Convention relating to the Status of Stateless Persons, the 1989 UN Convention on the Rights of the Child, the International Covenant on Economic, Social and Cultural Rights (1966), the Universal Declaration issued in 1948 (specifically, articles 1 and 26), the 1979 Convention on the Elimination of All Forms of Discrimination Against Women (specifically article 10), and the 2006 Convention on the Rights of Persons with Disabilities (specifically article 24).

The secondary data sources include empirical reports from UNHCR, the Institute on Statelessness and Inclusion, Tata Institute of Social Sciences and case law from the Supreme Court and High Courts (Gulsher v. Government of NCT of Delhi and Social Jurist v. Municipal Corporation of Delhi, among others).

Jurisprudential examples that can be utilised for comparative constitutional analysis include Plyler v. Doe, 457 U.S. 202 (1982) (United States), Government of the Republic of South Africa v. Grootboom (South Africa), Argentina's National Education Law No. 26.206, and Italy's Elementary School Act; Article 10. This comparative perspective shows how different ways of providing for a child's right to dignity can be implemented through the lens of access to education, whether or not a child has been verified as a citizen.

3. The Human Rights Protection Framework: Beyond the Right to Education

3.1 The 4A Scheme: Availability, Accessibility, Acceptability, and Adaptability

The right to education as per the International Covenant on Economic, Social, and Cultural Rights (ICESCR) is defined through the four As (Availability of schools, Accessibility of schools, Acceptability of curriculum, and Adaptability of education). Stateless children will experience unique violations of each dimension:

1. Availability: States have a responsibility to deliver unpaid basic schooling for all children (as set forth in ICESCR Article 13(2)(a)). However, there are no available/functional schools that meet this obligation due to "illegal" squatter settlements being excluded from Right to Education Act benefits.

2. Accessibility: One example of limited accessibility for stateless children is the requirement that all children present proof of identity in the form of Aadhaar to gain admission to a school. While stateless

children may be physically present in the jurisdiction, the lack of proof of identity deprives them of admission.

3. Acceptability: The cultural content of the curriculum in schools may be biased towards the linguistic and cultural heritage of the migrant child. This constitutes a violation of CRC Article 29(1)(c) regarding education that instils respect for a child's culture.

4. Adaptability: There is no alternative certification for children who have had their education interrupted, nor is there a flexible learning schedule available to accommodate working migrant parents. Therefore, the requirement of adaptability is violated.

3.2 Intersectionality: Gender, Disability, and Caste Dimensions

Under CEDAW Article 10, stateless children face a range of structural exclusions denying them an education caused by cultural impediments to acquiring education, and these also overlap with the process of acquiring the necessary documentation. Stateless children that have a disability will face discrimination from two different perspectives, as CRPD Article 24 mandates that any child with a disability shall receive access to an inclusive education; however, stateless children who have a disability do not have access to adequate accommodations in the school environment, nor are they allowed to be admitted to school since they do not possess proof of citizenship. In addition, when the combined effects of statelessness and caste are accounted for, there , there are several different vulnerabilities experienced by Dalit migrant children, which results in their experiencing caste-based discrimination as well as issues regarding citizenship-based exclusion.

4. Results and Analysis

4.1 The Constitutional Dignity Nexus: Articles 21 and 21A

As per the Supreme Court of India, Article 21 does not stop at providing an individual's right to normal life, but also works toward the ability for individuals to have freedom of movement and all that applies to freedom of movement, as well as to maintain a life of dignity. This includes the right of people to have participation in an education, as outlined under Article 21. The Court has laid down that education is an intrinsic part of an individual’s Right to live a Life with Dignity, and as such flows from their Right to live a Life, since it existed before the addition of Article 21A by the Constitution in 2002. This is significant, as it illustrates how important the Dignity nexus is: Education fails to facilitate the comprehensive development simply function as a basic service provision, but is critical to the development of an individual’s personality, as provided for under Article 29 of the CRC.

Unfortunately, for Stateless Children, this Constitutional promise meets what the TISS Statelessness Report refers to as the **'Aadhaar barrier'**. To this date, and although the RTE Act provides that all Stateless Children have a right to free education, schools throughout India continue to ask for proof of identity through the presentation of Aadhaar Cards to obtain admission to school. In addition, the Supreme Court of India issued a stay order in February 2025 regarding Rohingya Children and provided, specifically, that the reason these Children were denied admission to the school would be because in the absence of formal legal credentials an Aadhaar Card despite being situated within in possession of a UNHCR-recognised refugee document. This situation is a direct violation of the individual's Dignity nexus. By providing for a condition of evidence of citizenship in order to access education and develop an individual's personality, the Dignity nexus negates the Right to enjoy one's Life without Dignity.

4.2 International Legal Frameworks and Their Domestic Reception

Although the 1954 Convention relating to the Status of Stateless Persons is still not an act, India acknowledges it as customary international law, and it is referenced in the Draft National Policy on Refugees.

Under Article 22 of the Convention, stateless persons are constitutionally empowered to to receive education on equal terms to nationals, and the right to at least elementary education, Irrespective of their stateless status.

The UN Committee on the Rights of the Child stated in General Comment No 22 (2017) that all migrant children, including those in an irregular situation, are entitled to access education without discrimination; additionally, the Committee stated in General Comment No 6 (2005) regarding children who are unaccompanied, that children should not be excluded from access to education based on their immigration status.

India provides customary international law prohibiting non-refoulement, which forbids the return of refugees who have a well-founded fear of persecution, but there is no domestic Refugee Act to protect refugees. The Asylum Bill 2021 would designate unaccompanied minors as "individuals with special needs"; however, until that bill is signed into law, unaccompanied minors do not have any rights as asylum seekers.

4.3 The Documentation Barrier: Empirical Realities and Case Studies

The empirical reality of educational exclusion for stateless children in India reveals a multi-dimensional crisis that operates across five distinct yet interconnected domains.

Every time paperwork piles up, access slips away - especially when Aadhaar acts like a gatekeeper. A kid shows up without that ID or a birth slip? School doors stay shut, no exceptions. That flat refusal breaks two parts of the 4A model: whether services exist at all, and if kids can actually reach them.

One ruling in Gulsher v. Government of NCT of Delhi, back in 2019, made clear what happens when kids are too old on paper but missed school because they moved around. Even if past the usual cutoff, such students still deserve entry - so schools must bend how they apply age rules. Instead of turning them away, classrooms meant to catch up latecomers ought to open. Paperwork hurdles? Lower those too. Because learning matters more than boxes checked by officials. What stands behind this is simple: Article 21A promises education, and that promise beats strict bureaucratic labels every time.

Even so, the ruling affects just Delhi, skipping the rest of India - so kids elsewhere stay unprotected. Though clear there, it hasn't spread, leaving gaps where help should be.

Immigrants sometimes face tough language gaps when moving to a new place. One stumbling block? The local tongue might be nothing like their own. Take someone speaking Hindi who settles in Gujarat - suddenly familiar words vanish. Schools there teach in regional languages, which can leave newcomers behind. Without support, catching up feels out of reach. Picture trying to follow lessons in Telugu when you only know Punjabi. Even daily talk turns into a puzzle. In Karnataka, classrooms run in Kannada, another hurdle stacked high. These splits aren't just about speech - they shape chances. Missed lectures mean missed opportunities. Learning becomes slower, harder. New arrivals wrestle more than homework; they fight invisibility.

The fact that the individuals who have immigrated are not able to speak the same language as those providing instruction in their area constitutes a violation of Acceptability as defined by the 4A framework for education. This also violates Article 29(1)(c) of the Convention on the Rights of the Child (CRC), which states that ″the education of the child must be directed to the development of respect for the child's culture The Munshi v. State of Rajasthan case is primarily a language rights case but it also supports the claim that exclusion on the basis of language is discrimination under Article 14 of the Constitution of India. To a considerable extent, the language difference becomes a source of exclusion from education because of the failure to provide transitional bilingual education programs for migrant children. Economic Barriers and deportation fears are a chilling effect that violates the availability dimension of education as stated in Article 13 of the International Covenant on Economic, Social, and Cultural Rights (ICESCR). This means undocumented families who fear being detected by authorities will not enrol their child in school. This, in turn, will deny the family their ability to earn wages and become economically vulnerable.In the matter of Social Jurist vs Municipal Corporation of Delhi, the Apex court ruled in February 2025 that no discrimination should take place against families in terms of education on account of the economic standing

of the family as well as the documented status of the family. However, it is pertinent to note that this case dealt only with cases of individual discrimination against the lack of documentation and present wage income and not the structural hurdles that majority individuals (unrepresented) faced in obtaining education.

Psychological Barriers and Violations of Dignity have both The fear of being discovered acts as a barrier for anyone wanting to enroll in schools. Education rights, along with non-discrimination rights, are violations of Article 21 as established in the Supreme Court Order of (2025) in relation to the Rohingya Human Rights Initiative. These children and their parents will develop a psychological barrier towards education based on the perception that the education system is unfriendly as a result of the psychological effects of statelessness, described as "doing legal ghosting." It isn't possible for them to avoid working for themselves through informal or formal employment because they will see the atmosphere of fear created by documentation requests as a Psychological Barriers to avoiding being caught or being charged with an offense.

Structural Barriers in Examination Systems create the cycle of exclusion through board examination ineligibility due to accounting for the payment of **"foreign student"** fees, or through being unable to provide documentation to support the right to receive a board certificate from the bureau. The right to education under the RTE Act is being violated by not providing Accessible so children can get a primary education or Health Care, and not being able to get secondary or post-secondary education. The creation of the “diploma gap”, wherein children can track to secondary education but cannot transition to post-secondary education, will, without any doubt, result in the violation of the progressive responsibility provisions contained in the ICESCR Article 13(2). The CBSE and State Boards effectively create a cap on educational attainment through regulations that create differential documentation or fee schedules for children without Indian Citizenship.

Case Study 1: The Rohingya Children Crisis (Delhi, 2025)

In February 2025, the Supreme Court’s decision in Rohingya Human Rights Initiative v Government of NCT of Delhi marked a key turning point in Indian law regarding education for stateless children. The Supreme Court ordered that the appropriate authority to resolve claims for children denied admission was the Delhi High Court and that the petitioner NGO would be required to provide pro bono legal representation. The Court confirmed in this ruling that *"no Child shall be discriminated against in education"* and has already issued a ruling similar to this one in Social Jurist v Municipal Corporation of Delhi (February 17, 2025). However, while the Court ordered that individual litigation be pursued for each child subject to discrimination, this process reveals how ineffective existing laws and policies are regarding systemic discrimination. For example, Senior Advocate Colin Gonsalves asserted that an Aadhaar requirement for UNHCR-card holders is a clear violation of the non-discrimination principle. Hence, there

is a stark contrast between the promises contained in the Constitution, and the realities faced on the ground play out in enforcement of those promises; while the Court ordered that rights must be upheld in these cases, it ultimately left these individuals with the burden of enforcement, and, effectively, all Denials of Death, or, poorly-resourced High Courts, as a barrier to full or equitable implementation of these rights.

Case Study 2: Over-Age Refugee Children and RTE (Delhi High Court, 2019)

The Delhi High Court made a ruling on the difficulties faced by over-age refugee children in Gulsher v. Government of NCT of Delhi (2019) who have suffered disruptions to their schooling due to upon the dissolution of their residential security within their host or native communities and because they do not possess the proper documentation needed to be enrolled in school. The Court concluded that, regardless of the expressed age limits in Section 2 of the RTE Act, these provisions must be interpreted such that is flexible enough to permit enrolment pertaining to these marginalized minors because using strict age-grade structures will continue to exclude displaced populations from receiving an education. To assist these children, the Court mandated the establishment of special bridge classes which can allow for an alternative educational pathway, as well as a relaxation of documentation requirements. Furthermore, the Court established the principle that the right to education under Article 21A takes precedence over rigid administrative categories. The judgment in Gulsher is an exemplar of adaptive jurisprudence addressing the specialised circumstances of stateless children; it has not had any administrative effect outside of the geographical jurisdiction of Delhi.

Case Study 3: Interstate Migrant Workers' Children (Seasonal Labour)

The temporary migrants of agriculture and construction have children who experience recurring exclusion. This indicates that the RTE Act has not succeeded in finding solutions for mobile populations. As outlined in Section 6 of the RTE Act, **"neighbourhood schools"** are required, but this legislative rule assumes a family is residing in one location throughout the year. Therefore, these families may migrate for work by the time of harvest or completion of construction work. According to research conducted by Grant Thornton (2024), children are dropping out of school every year because of migration. This creates a continuous cycle of illiteracy for this group of children. Research also shows that the an absence of a way to transfer educational records transnational movement is in contradiction to the ICESCR Article 13(2)(e) regarding continuous education, which is creating many lost children, who develop a large number of educational barriers to overcome by the time they reach adolescence. For example, children who are temporarily living in brick kilns in Punjab, Haryana and Uttar Pradesh have had many of these negative outcomes due to the cycle of migration between these states and their home states of Bihar, Jharkhand and West Bengal. These children are unable to be admitted to the school systems of their destination states during their seasonal

migration consequent to a deficiency in required transfer certificates. Then, when these children return to their home states, their school placements have been forfeited because of their extended time away.

5. Discussion

5.1 Statelessness as Structural Violence Against Human Dignity

The exclusion of stateless children from education is a classy case what Johan Galtung calls **"structural violence,"** which articulating the systemic ways in which people are denied their full potential as human beings through systems that do not require direct interpersonal violence. If we look through the lens of Article 21's guarantee of dignity within Article 29, CRC—the development of personality **"to the fullest extent possible"**—the lack of access to education for stateless children does not merely represent a denial of the substantive realization of service, it also represents a fundamental ontological injury. The principle of " best interests of the child" (CRC Article 3), which gives priority to meeting a child's needs, is systematically placed below the requirement of meeting the needs of the state in the enforcement of immigration policies. While the 2025 Supreme Court decision enhances the rights of stateless children by requiring that refugee children proceed through the courts on an individual basis, it does not provide for substantive, systemic administrative reform of policies that neglecting / denying them access to education.

The violation of dignity occurs at multiple levels of society: at the individual level, the denial of a child an education inhibits their ability to achieve self-actualization and financial independence, which has been referred to by Amartya Sen as **"capability deprivation"**; at the societal level, the denial of education to entire cohorts of children perpetuates intergenerational poverty and social stratification, thereby violating Article 51A(e) of the Constitution's mandate of brotherhood, in violation of the constitutional mandate of fraternity; and at the global level; The failure of India to honour its sovereign commitments under the ambit of under Article 22 of the 1954 Convention, despite its being established as a guiding principle of customary international law on human rights obligations, undermines India's credibility as a regional leader and its fulfilment of international law regarding human rights.

5.2 The Citizenship-Education Couplet: Comparative Constitutional Analysis

India's legal framework combines educational access with verification of citizenship in a problematic way, which sets it apart unfavourably from international norms. For example, in Italy, Article 10 of the Elementary School Act requires schools to enrol children irrespective of their documentation status, and, similarly, Kazakhstan has a statute that specifically prohibits the politicisation of statelessness pertaining to education. Beside this , India's Right to Free and Compulsory Education Act (RTE) is part of a system that relies extensively on documentation checks before a child can access education, thus treating education as a privilege connected to citizenship rather than as a right of all human beings.

The United States Supreme Court's decision in Plyler v. Doe (1982) presents an important comparative example for India. In Plyler, the Court held that denying public school access to undocumented children violated the Equal Protection Clause of the United States Constitution. The Court rejected the argument made by Texas that denying undocumented children access to public schools represented a fiscally sound public policy because it would not make sense for Texas to incur an unnecessary cost for children who would not stay and become taxpayers. It was argued by the court that "these savings to the State (and to the Nation) through the denial of public education to these children are totally out of proportion to the costs incurred by the State (and the Nation) for their education," and that "the potential social costs resulting from denying children a sound education... will far outweigh any costs saved by denying aliens, admission to our public schools." Similar arguments can be made within the framework of the Indian scenario; however, such reasoning is lacking in the Indian courts. In the Grootboom case, it was held that the right to education comes with an obligation on the part of the State to provide immediate implementation with regard to accessibility and cannot be denied or delayed, but needs to be progressively realized. In South Africa, the Constitutional Court uses a 'Reasonableness Test' with regard to socio-economic rights where the State acts reasonably without discrimination with regard to accessing school."The above model could be applied in the Indian judicial system in evaluating the implementation of the Right to Education Act in relation to stateless children. Secondly, the country of Argentina has established a legal framework in the form of its National Education Law No. 26.206, giving the right to education to undocumented migrants and stateless individuals in the same capacity as nationals and thus can provide legislative guidance in the establishment of India's refugee law. According to Radha Govil, children are vulnerable on two counts as migrants and minors, whereby their childhood development becomes secondary to their immigration status. The mention of the decision of the Social Jurist by the Court shows that case laws have been established about non-discrimination in the process; the mention is due to the unwillingness of the Court to extend general mandamus to stateless children; but rather, the Court is giving each case the chance to come before it and thus shows its unwillingness to deal with policy on migration.

5.3 Reformative Approaches: From Rights to Remedies

The "urgency" demanded by the research requires moving beyond judicial incrementalism toward structural reform grounded in the 4A framework.

To comply with **Immediate Administrative Measures (Availability and Accessibility)**, all government schools must admit children of undocumented migrants upon receipt of parent affidavits or UNHCR cards, until such time as the child has received an Aadhaar. Any prohibition on documentation required for mid-process must be enforced through District Education Officer oversight to ensure that any enrolment that needs to be terminated does so effectively. To facilitate the termination of enrolment and to effectuate the

inclusion of children are not excluded from education while waiting for documentation, "Education Sans Frontières" cells should be established in each District Collectorate, and should be based on the bridge class concept of the Gulsher judgment. Cell staff should have the authority to issue provisional admissions for children awaiting documentation while ensuring that any children denied education due to a delay in the bureaucratic processes are able to receive an education.

For the purpose of developing **Medium-term Pedagogical Reforms (Acceptability and Adaptability),** the number of Bridge Schools operating under Section 4(2) of the RTE Act and Mobile Learning Centres for migrant settlements, using the **"school mapping"** methodology developed in Grootboom to locate excluded communities, must be expandedIn an attempt to help provide NIOS certification paths for children affected by disruption in their education, as has been the case with BOSCO Delhi and refugee children, cycles of enrollment need to be introduced in a national scope. As indicated under CRC Article 29, Curriculum development needs to provide for children who will be allowed to learn in multiple languages and considering their cultural heritage. This will convert linguistic and cultural differences into strengths instead of hindrances to education. Professional development programs for teachers need to consider modules that cover teaching mobile and displaced populations to adjust methods of instruction based on levels of disruptions among learners.

For achieving Legislative Adaptability for the long-term, Refugee Law should be adopted which provides long-term and extensive Education Rights to Stateless Persons (as per Article 22 of the 1954 Convention relating to Refugees).

Article 22 of the 1954 Convention relating to Refugees grants Stateless Persons access to Elementary Schooling on an equal basis with "National Children," and ensures access to Stateless Persons progressively for Secondary and Higher Education.

For making Article 21A of the Indian Constitution applicable to all Stateless children, a constitutional amendment would need to be adopted specifically for guaranteeing Stateless children protection against discrimination on the ground of citizenship. To achieve such an amendment, it may be necessary to adopt interim legislative action to ensure such protection.

Separating the School Admission Process from Citizenship Requirements, which currently takes place in the Argentina Model, will involve revising the rules of the RTE Act to explicitly forbid the use of Aadhaar or Citizenship-related Documentation in determining whether to admit children into schools.

6. Conclusion

The phenomenon of Statelessness in India has been creating a systemic infringement of the right to dignity by Article 21 of the Constitution and the relationship between Articles 21 and 21A. Intersectional

discrimination is further added by CEDAW and CRPD to the violation of the dignity relationship. The Supreme Court's decision in February 2025 has declared that non-discrimination is an established principle of law; nevertheless, the procedural difficulties involved in seeking access to education by stateless children make it impossible for individual lawsuits to solve such a problem (about 70,000 children are born every year without citizenship).

The analysis reveals that "educational apartheid" does not work on the basis of prohibitions but rather through violent practices carried out by administrative procedures that infringe upon the rights guaranteed in the 4A human rights doctrine. In order to meet the demands of human dignity enshrined in Article 21 of the Constitution, it becomes necessary to separate "Access to Education" from "Citizenship Verification" in accordance with international human rights laws, namely Convention on the Rights of the Child: "All children have the right to all rights under the convention regardless of their statelessness."

The quest for justice can be done not only by the means of legal processes but also through the courage in the administration and vision in the legislation. Education needs to be reformed from a privilege of documentation into a basic right for human development. It has been identified that there is a moral, legal, and constitutional urgency regarding education that needs to be provided and any act otherwise considered immoral, illegal or unconstitutional and every day without getting an education by a child means irreparable damage to his or her human development (Article 29 of the CRC). As declared by the Supreme Court, all these children are irreparably damaged and denied their potential and that would amount to "the irreversible wasting of human potential." The proposed framework offers an immediate flexibility in the administration, mid-term flexibility in the teaching methods and finally the legal process to provide an education to children who do not have the right of being educated due to statelessness.

References

- Cori Alonso-Yoder, 'Federal and state policies targeting immigrant children at school erode decades of progress in education access', Brookings Institution (30 March 2026).
- Radha Govil et al., 'Realising the Right to Education for Stateless Persons', Global Alliance Webinar, Institute on Statelessness and Inclusion (18 December 2025).
- 'The Supreme Court case that affirmed undocumented immigrants' right to a free public education', EdSource (9 April 2026).
- R. Vimala & C. Salini, 'A Critical Study of Right to Education for Stateless Children', Supremeo Amicus (2023).
- UNESCO, 'The Status of the Right to Education of Migrants' (Right to Education Initiative, 2018); Committee on Economic, Social and Cultural Rights, General Comment No. 22 (2016); Argentina National Education Law No. 26.206; UDHR Articles 1, 26; CEDAW Article 10; CRPD Article 24.

- National Law University Odisha, 'Realising the Rights of Refugee Children through the Legal Framework' (2025); *Gulsher v. Government of NCT of Delhi* (Delhi High Court, 2019).
- National Immigration Law Centre, 'Understanding Plyler v. Doe: SCOTUS Case Protecting Access to Public Education' (20 March 2025).
- Yeukai Mahleza & Mahlatse Maake-Malatji, 'Legal Status of Stateless Children in India and their Right over Access to Justice', University of Pretoria (2024); *Government of the Republic of South Africa v. Grootboom* (Constitutional Court, 2000).
- Tharoor, S., 'Proposed Asylum Bill 2021: Unaccompanied Children as Persons with Special Needs' (PRS Legislative Research, 2021).
- 'Human rights and stateless children', Children of a Stateless World (UNHCR/Plan International).
- '1954 Convention relating to the Status of Stateless Persons', University of Melbourne Law School (16 December 2025).
- Ottoline Spearman, 'An Appeal on Inclusive Education for Stateless Children', The Geneva Observer (25 November 2023).
- OHCHR, 'Convention relating to the Status of Stateless Persons' (Treaty Series, Vol. 360).
- '1954 Convention relating to the Status of Stateless Persons', International Institute of Humanitarian Law.
- Oxford Human Rights Hub, 'Indian Supreme Court Strengthens Right to Education for Children with Disabilities' (9 November 2021).
- Anon, 'Legal Status of Stateless Children in India', SSRN (2021).
- Tata Institute of Social Sciences, 'Statelessness in India: SCPP Report' (Mumbai, 2019).
- Understanding Stateless Children's Barriers to Education, Institute on Statelessness and Inclusion (2026).
- 'Supreme Court directs states to survey orphaned children denied Education', The Indian Express (8 August 2025).
- Committee on the Rights of the Child, General Comment No. 22 (2017) on the rights of children in the context of international migration; General Comment No. 6 (2005) on treatment of unaccompanied and separated children.
- Committee on the Rights of the Child, General Comment No. 12 (2009) on the right of the child to be heard.
- Namitha Melwin, 'The Rights of Stateless Children in India: Issue of Health Care, Education and Social Welfare', International Journal of Law Management & Humanities (2021).
- Committee on the Rights of the Child, General Comment No. 22 (2017), paras 9, 22, 41.

- Committee on the Rights of the Child, General Comment No. 22 (2017), para. 14 (non-discrimination regardless of status).
- 'Stateless children and youth – an overview', Institute on Statelessness and Inclusion.
- Grant Thornton, 'From legal mandates to practical solutions: Education for migrant children in India' (24 June 2024).
- IJLMH, 'Legal Status of Stateless Children in India' (2021).
- 'India 2000 Delhi Supreme Court judgment', End Corporal Punishment (30 May 2018).
- Central National Law University, 'Right to 'Unrestricted' Education in India' (2025).
- Shalini Perumal, 'The right to education for Rohingya refugee children in India', DVB (14 April 2025).
- 'Exploring the Education Rights of Rohingya Children in India', International Journal of Interdisciplinary Social Science Research (2025).
- 'Supreme court upholds equal education rights: No child, including Rohingya refugees, to face discrimination', Times of India (13 February 2025).
- Supreme Court of India, Order dated 28 February 2025 in Writ Petition(s)(Civil) No(s).57/2025.
- Grant Thornton, 'Education for Migrant Children' (2024).
- Law Brigade, 'The Rights of Stateless Children in India' (2019).